Early Learners

Child Abuse and Neglect Program Policy

1302.47 (a)(b4K and b5i) Safety practices.

(a) A program must establish, train staff on, implement, and enforce a system of health and safety practices that ensure children are kept safe at all times. A program should consult Caring for our Children Basics, available at https://www.acf.gov/ecd/caring-our-children-basics, for additional information to develop and implement adequate safety policies and practices described in this part.

(b) A program must develop and implement a system of management, including ongoing training, oversight, correction and continuous improvement in accordance with § 1302.102, that includes policies and practices to ensure all facilities, equipment and materials, background checks, safety training, safety and hygiene practices and administrative safety procedures are adequate to ensure child safety. This system must ensure:

(4) *Safety training*.

(i) *Staff with regular child contact*. All staff with regular child contact have initial orientation training within three months of hire and ongoing training in all state, local, tribal, federal and program-developed health, safety and child care requirements to ensure the safety of children in their care; including, at a minimum, and as appropriate based on staff roles and ages of children they work with, training in:

(K) Recognition and reporting of child abuse and neglect, in accordance with the requirement at paragraph (b)(5) of this section.

(5) *Safety practices*. All staff, consultants, contractors, and volunteers follow appropriate practices to keep children safe during all activities, including, at a minimum:

(i) Reporting of suspected or known child abuse and neglect, as defined by the Federal Child Abuse Prevention and Treatment Act (CAPTA) (42 U.S.C. 5101 note), including that staff comply with applicable Federal, State, local, and Tribal laws;

(c) A program must report any safety incidents in accordance with § 1302.102(d)(1)(ii).

Aligned with Head Start Performance Standards, Oregon State Law, and PPS Administrative Policy
To guide the prevention, identification, reporting, and response to suspected child abuse and neglect within the PPS Early Learners program.

Policy:

Reference: https://www.pps.net/cms/lib/OR01913224/Centricity/Domain/4814/4.50.051-P.pdf
The safety and welfare of all children is the District's highest priority. Any District employee, who has reasonable cause to believe that any child with whom the employee has come in contact has suffered abuse or neglect, as defined in state law, will immediately notify the Oregon Department of Human Services or the local law enforcement agency. The District employee shall also immediately inform his/her supervisor. All district employees are subject to this policy and state law for mandatory reporting of suspected child abuse. Abuse of a child by district employees or by students will not be tolerated.

Any District employee participating in good faith in the making of a report, pursuant to this policy and Oregon law and who has reasonable grounds for the making thereof, shall have

immunity from any liability, civil or criminal, that might otherwise be incurred or imposed with respect to the making or content of any such report. Further, the initiation of a report in good faith about suspected abuse of a child may not adversely affect any terms or conditions of employment or the work environment of the complainant. If a student initiates a report of suspected abuse of a child by a district employee or a student, in good faith, the student will not be disciplined. No District employee, student or Board member may engage in retaliation against any person who reports suspected abuse of a child. Any employee or student, who engages in any form of retaliation for reporting suspected child abuse, or for participation in an investigation, will be subject to disciplinary action up to and including dismissal.

The district shall have written procedures to provide annual training for district staff in the prevention and identification of abuse of a child and on the obligations of district employees. The district shall provide access to training for parents and legal guardians of students on the prevention, identification of abuse of a child and the obligation of district employees to report suspected abuse of a child.

- All PPS Early Learners staff are *mandatory reporters* under Oregon law (ORS 419B.005–419B.050).
- Reports must be made *immediately*—within **24 hours**—to the Oregon Child Abuse Hotline: **1-855-503-SAFE (7233)**.
- This duty takes priority over all other responsibilities.
- All PPS staff complete annual child abuse prevention training (ORS 339.400).
- Volunteers must report concerns to the site Administrator.

Reporting Guidelines

- *First-person reporting is required*—the staff who suspects or observes must report.
- Do *not* investigate or question the child or others.
- Reports must remain *confidential*. Do not discuss details or share with families.

Prevention & Family Education

- Families review this policy during orientation and home visits.
- Parenting support and abuse prevention training are offered throughout the year.
- The policy is included in the Family Handbook and available upon request.

Procedures:

Reference: Child Abuse Prevention and Sexual (mis)Conduct Training - Portland School District

Suspected Physical or Sexual Abuse, Neglect, or Threat of Harm

Immediate Action Steps:

1. **Notify Your Supervisor.** Inform your supervisor as soon as possible. Reporting should not be delayed while waiting to reach a supervisor.
2. **Make the Report Immediately.** If you suspect abuse or neglect, call the DHS hotline right away. 1-855-503-SAFE (7233)
3. **Supervisor Support and Coordination.** The Supervisor will notify the Family Engagement and Equity Manager (FEEM) to consult on next steps and ensure appropriate support is in place.
    - If the Supervisor and FEEM are unavailable, staff must contact the Director.

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- Even if no one is reachable, the staff member must still report to DHS without delay.
- Supervisors will notify the assigned Family Advocate and determine any additional internal communication needed to support the child, family, and classroom.
- Notify the center Principal or front office staff, as needed, so the school office is prepared for potential visits from DHS or law enforcement (or for co-enrolled children).

Important Guidelines:

- **First-Person Reporting Required.** The individual who observes, suspects, or is present during a disclosure must be the person to make the report.
- **Do Not Investigate**
  - Do **not** undress a child to check for injuries.
  - Do **not** take photographs.
  - Do **not** ask leading or investigative questions.
  - Do listen calmly and attentively if a child discloses abuse.
- **Reports for Non-PPS Children**
  If the child involved is **not enrolled in a PPS program**, staff are still required to report. No further PPS follow-up is necessary in such cases.

Reporting suspected child abuse can be emotionally difficult. Support is available. Please reach out to your supervisor, FEEM, or mental health staff for resources and guidance.

What to Report and Document (if known):

Be prepared to provide the following information when speaking to Oregon Child Abuse and Neglect Hotline:

- Your name, job position, and contact information.
- Name, date of birth or age, addresses and phone numbers for all adults and children involved.
- The nature and extent of the abuse, detailed observations and statements made by the child or others; including whether the child has current injuries.
- Explanation given for the abuse and any other information that is applicable to the context of the suspicion or concern.
- Any cultural or language considerations, race, and ethnicity.
- If applicable, a description of the child's disability or any special needs.
- Fill out the PPS Child Abuse Hotline Call Log while making the report (there is info you need to get from the screener to put on the form).
  You will receive an email with a report of your responses.
  Email a copy of your responses to your Supervisor and the FEEM immediately, where it will be kept on file.

Onsite DHS Interview:

If DHS sends investigators to the center to interview a child, staff, or a parent, notify the Early Learners Administrator immediately. We will always request that a staff member be present with the child during the interview; however, this decision rests with DHS.

Be prepared to document the following information:

- Date of the interview
- Location (center and room)
- Names and contact information of DHS interviewers
- Staff present during the interview

- Summary of the interview
- Plan created with DHS regarding disclosure to the family

Child is Removed from the Center:

If a child is taken into protective custody from school, contact the Early Learners Administrator and the Director immediately. DHS or law enforcement is responsible for notifying the parent or guardian. School staff should not contact the parent independently.

If questioned by the parent or guardian, staff may only say:

> *"Personnel from [DHS or a law enforcement agency] removed the child from school. You will be contacted by personnel from that office. I am prohibited by Oregon law from providing any further information."*

DHS or law enforcement personnel must show identification and sign the child out on the center's sign-in/out sheet. If a child is removed due to suspected abuse, efforts will be made to coordinate with DHS or Child Welfare to maintain the child's current site placement, or to transfer them to another site if foster care is needed.

When a Report is Made Against a Staff Member:

If a suspected incident of abuse involves a staff member, the following steps must be followed:

- The staff member or witness must notify their Supervisor and PPS Director of Early Learners immediately. Please see 1302.102(d)(1)(ii) Incident Reporting
- The Supervisor and the staff member will make the DHS report together by calling the Oregon Child Abuse Hotline at 1-855-503-SAFE (7233).
- The Supervisor or staff member must complete the Incident form.
- Staff may be reassigned or suspended pending the outcome of the DHS or law enforcement investigation, or temporarily restricted from contact with children or program spaces
- DHS or law enforcement will be asked to share relevant information to assist in determining next steps.
- Corrective action will be based on the outcome of the investigation.

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CHILD ABUSE AND NEGLECT PROGRAM POLICY

Suspect Child Abuse or Neglect

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Notify Supervisor

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Call DHS Hotline 1-855-503-SAFE (7233)

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Supervisor Notifies Family Equity and Engagement Program Manager

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Supervisor Notifies Family Advocate as Necessary and Any Other Staff as Needed

Important Guidelines

- First-person reporting is required
- Do not investigate
- Reports must be made within 24 hours

REPORT MADE AGAINST STAFF MEMBER

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Reach out to supervisor immediately

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Report to DHS

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Supervisor contacts Director
Director notifies HR and Office of Head Start

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Complete Child Safety Incident form

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Report to State Childcare Division if in licensed facility

- Staff may be reassigned or suspended depending on severity
- DHS or law enforcement determines next steps
- Corrective action will be based on investigation outcome